Forensic Shadow Economy, Cash Penalties & Scams

Author: Chirag Singhal Dhanpedia India Reference Publishing

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Part Six: Forensic Finance, Real Estate Black Money, and Shadow Economics

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Forensic legal analysis of real estate cash limits under Section 269SS/ST, mandatory one hundred percent penalties under Section 271D/DA, Section 50C/56(2)(x) circle rate safe-harbor double taxation, asset confiscation under the Benami Property Transactions Act, and criminal sanctions against dabba trading under SCRA 1956.

1. Real Estate Cash Restrictions and Penalties

Under Section 269SS of the Income-tax Act 1961, accepting cash of twenty thousand rupees or more for immovable property transfer is prohibited. Section 271D imposes a mandatory penalty equal to one hundred percent of the cash accepted. Section 269ST restricts general cash receipts of two lakh rupees or more, backed by a one hundred percent penalty under Section 271DA.

2. Double Taxation Penalties under Sections 50C and 56(2)(x)

Discrepancies exceeding ten percent between registered agreement value and circle rate trigger capital gains tax on the seller on deemed consideration, while the buyer is taxed on the difference as income from other sources.

3. Prohibition of Benami Property Transactions

Under Section 5 of the PBPT Act 1988, benami assets are subject to absolute confiscation without compensation, accompanied by up to seven years rigorous imprisonment under Section 53.

4. Criminal Sanctions on Dabba Trading

Off-exchange bucket shops operating outside recognized stock exchanges violate Sections 13 and 16 of the SCRA 1956, carrying penalties under Section 23 of up to ten years imprisonment and fines up to twenty-five crore rupees.